

		interest, is DENIED as inadequately substantiated. (Code Civ. Proc., § 482.040 [facts in supporting affidavit “shall be set forth with particularity”].) The court also observes that plaintiff’s attorney fee request relies on an attorney fee provision in the “Business Associate Agreement” providing for attorney fees in the event of a “breach of ... obligations under this Agreement.” (Makridis Decl., ¶ 32; Ex. B, thereto, Section 6.1.) However, that agreement applies to the use and disclosure of “Protected Health Information,” not the unpaid services at issue here, which the evidence shows is the subject of a separate implied-in-fact agreement, as noted above. Moving party to give notice.
9	Sanchez vs. Martinez 2025-01463096	Motion for Determination of Good Faith Settlement Continued to September 24, 2026 at 8:30 a.m. in Department C44.
10	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion to Enforce Settlement Motion for Good Faith Settlement Defendant USAA Casualty Insurance Company’s Motion to Enforce Settlement Agreement is DENIED. Moving Defendant has failed to show “a writing signed by the parties outside of the presence of the court” or an oral stipulation made before the court for settlement of the case. (Code Civ. Proc. §664.6, subd. (a).) Defendant USAA Casualty Insurance Company’s Motion for a determination of good faith settlement is DENIED because Moving Defendant has failed to establish that Plaintiff has agreed to settle her claim against Moving Defendant. Moving Defendant asserts that Plaintiff has entered into a binding agreement to settle her dispute with Moving Defendant based upon (1) a statement in an email from Plaintiff’s counsel that Plaintiff “will” agree to settle the claim and requesting Defendant to prepare a settlement agreement for her consideration and (2) a statement made by Plaintiff’s counsel at the hearing on the OSC re: sanctions for Defendant’s counsel’s failure to appear that Plaintiff had settled her claims against Moving Defendant. This is not sufficient to meet the requirements of Code Civ. Proc. §664.6, subd. (a). There is no written stipulation signed by Plaintiff or her counsel that indicates a stipulation to settle Plaintiff’s claims

	against Moving Defendant for \$3,500. With regards to an oral stipulation before the court, the court finds that Plaintiff’s counsel’s statement before the court at the 3/2/26 OSC hearing did not state any of the terms of the purported settlement and was not sufficient to constitute an oral stipulation to settle the case made before the court. The oral assent of a party’s counsel to a settlement agreement made before the court can be effective to satisfy the requirements of Code Civ. Proc. §664.6. (See <i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1322-1326 [discussing the legislative history of Code Civ. Proc. §664.6 and finding that oral stipulation by counsel for a party was sufficient to satisfy the “stipulate ... orally before the court” requirement of Code Civ. Proc. §664.6, subd. (a).] Moreover, “in determining whether the parties entered into a binding settlement of all or part of a case, a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) Here, Plaintiff’s counsel did state to the court that the Plaintiff and Moving Defendant have agreed to settle the case, but the parameters of the settlement were not set forth on the record and agreed upon by the parties. Thus, the court finds that the statements at the 3/2/26 OSC hearing were not sufficient to satisfy the requirements of Code Civ. Proc. §664.6, subd. (a). Moving Defendant’s reliance on <i>Richardson v. Richardson</i> (1986) 180 Cal.App.3d 91, 97 and <i>Kohn v. Jaymar-Ruby, Inc.</i> (1994) 23 Cal.App.4th 1530, 1533-1534 is misplaced, as those cases involved a judicially supervised settlement agreement reached at a settlement conference. The circumstances presented in those cases are materially different from here. There, the parties discussed, and came to an agreement regarding, the essential terms of the settlements while before a judge during a settlement conference. Here, the court was informed of an imminent dismissal following an agreed upon settlement, but none of the terms of the settlement or process or arriving at an agreement were part of the proceedings before the court. Moving Defendant cites for the first time on reply <i>Birdsall v. Helfet</i> (2025) 113 Cal.App.5th 558 to argue that objective manifestations of an agreement are sufficient to render a settlement
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binding. But Moving Defendant's reading of *Birdsall* is too expansive. As an initial matter, *Birdsall* did not address the requirements for a stipulation to settle a case to be enforceable under Code Civ. Proc. §664.6, as *Birdsall* involved a motion for summary adjudication of an affirmative defense that the matter had been settled prior to the commencement of the action. Code Civ. Proc. §664.6, however, applies when "parties to a *pending litigation*" settle a case. Additionally, *Birdsall*'s holding is limited to finding that the factual circumstances presented were sufficient to raise a triable issue of fact as to an affirmative defense that the matter had already been settled. (See *Birdsall*, supra., 113 Cal.App.4th at 571 ["In conclusion, on this issue we hold—and it is all we hold—that the "outward manifestations" were such that they presented a triable issue of material fact such that a "reasonable person" could find consent, and thus to grant summary adjudication was error."].)

Moving Defendant argues that Plaintiff should be judicially estopped from denying the settlement agreement, based upon Plaintiff's counsel's representation at the 3/2/26 hearing that the case had settled. "The elements of judicial estoppel are '(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.' [citations] Even if the necessary elements of judicial estoppel are satisfied, the trial court still has discretion to not apply the doctrine." (*Owens v. County of Los Angeles* (2013) 220 Cal.App.4th 107, 121.)

Here, the court finds that the doctrine of judicial estoppel is not applicable. The Court does not consider Plaintiff's counsel's remark about a potential resolution of the case to be taking a position in a judicial proceeding. Even if it is considered as such, Plaintiff's counsel has clearly established that any remark based upon his understanding that a settlement was imminent was based upon a mistaken understanding of his client's intentions.

In sum, even though Code Civ. Proc. §664.6 has been expanded to permit a party to be bound to a settlement agreement entered into by its attorney, the showing here is not sufficient to demonstrate that either Plaintiff or her counsel have sufficiently bound her to the purported settlement agreement Moving Defendant seeks to enforce.

		Plaintiff shall provide notice of this ruling.
11	Zacharda vs. Orange County Youth Sports Association 2020-01149973	Motion for Leave to File Amended Cross-Complaint Defendant and cross-complainant Orange County Youth Sports Association's motion for leave to file a second amended cross-complaint is GRANTED. OCYSA shall electronically file the proposed pleading with the court within three days. The second amended cross-complaint is deemed served upon all parties who have appeared herein. OCYSA to give notice.